

Rakesh Kumar v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 4 February 2016 · WRIT - C No. - 62426 of 2012 · **Writ dismissed for non-prosecution; interim discharged.**

HEADNOTE

Writ challenging recovery of a remaining revised provisional assessment without decision of the consumer's objections, alleged to violate the U.P. Electricity Supply Code, 2005, dismissed for non-prosecution when none appeared for the petitioner. Any interim order stood discharged. No adjudication of the assessment or the Supply Code.

FACTUAL SUMMARY

Rakesh Kumar challenged recovery of Rs. 3,95,241 remaining under a Revised Provisional Assessment dated 18 October 2012, made after he deposited compounding fee. He filed objections on 1 November 2012. Without deciding them, respondent no. 5 by letter dated 9 November 2012 directed recovery of that amount. He alleged violation of the U.P. Electricity Supply Code, 2005. On 3 December 2012 the Court granted time for a counter-affidavit and listed the writ. On 4 February 2016 none appeared for him.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal for non-prosecution

HOLDING

The writ was dismissed for non-prosecution after none appeared for the petitioner on the revised list; any interim order stood discharged. The Court did not decide whether recovery of the remaining revised provisional assessment without deciding objections violated the Supply Code. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RECOVERY OF THE REMAINING REVISED PROVISIONAL ASSESSMENT WITHOUT DECIDING THE CONSUMER'S OBJECTIONS VIOLATED THE U.P. ELECTRICITY SUPPLY CODE, 2005

Writ dismissed for non-prosecution; no merits adjudication. ¶ 2